14. The AMF Respondents amended their motion for summary judgment on the evidence against the applicants on May 26, 2023, and now file the affidavit of Brittany Durnford, sworn July 10, 2023, which attaches the 2016 Email, in support.

FACTS

15. As early as 2006, Mr. Boucher and Mr. Boudreau began discussing and negotiating the sale of 176 NSL's assets. This transaction transpired over the next several years, concluding in or around November 27, 2015, when 176 NSL received payment of $386,213.60.[3] The applicants in this proceeding started an action against 176 NSL, then AFL Tank Manufacturing Limited, on June 29, 2010.[4] On December 20, 2010, Mr. Boudreau incorporated a new entity, then known as 3250450 Nova Scotia Limited ("325 NSL"), and eventually carrying on business as Arichat Metal.[5] On December 31, 2010, 176 NSL changed its name from "AFL Tank Manufacturing Limited" to its present name of 1766134 Nova Scotia Limited.[6] This meant that the party defending the legal action was now 1766134 Nova Scotia Limited, although the court record was never updated to reflect this. On the same date, 325 NSL changed its name to AFL Tank Manufacturing Limited.[7] These changes resulted from an asset purchase-and-sale between the two companies, as well as another company of Mr. Boudreau's, 323 NSL.

16. The respondents say that these actions, including assigning the business name of AFL Tank Manufacturing to 325 NSL, were all legitimately performed pursuant to an ordinary asset purchase-and-sale transaction for fair market value, exchanging the assets of 176 NSL for cash and leaving value in 176 NSL for any future judgment against it in *lieu* of the transferred assets. The transaction was not surreptitious. The parties made all necessary public registrations with the Registry of Joint Stock Companies.

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3 Johnson Affidavit, Exhibit "I".
4 Johnson Affidavit, Exhibit "A".
5 Affidavit of Lindsay Corey, sworn April 1, 2021, Exhibit "A", ["Corey Affidavit"] at para 19 of the Affidavit of Jeffrey Waugh, filed April 13, 2018 ["Waugh Affidavit"]
6 Corey Affidavit, Exhibit "A", at para 10 of the Affidavit of Jeffrey Waugh, filed April 13, 2018 ["Waugh Affidavit"].
7 Corey Affidavit, Exhibit "A", at para 12 of Waugh Affidavit.